

case was available, it was not binding on him as a state judge. We note, however, that our test in *Herald* ("significant risk of prejudice") and the test applied by Judge Morton ("strong likelihood of prejudice") were similar to the one ultimately adopted by the Supreme Court in *Press-Enterprise II* ("reasonable likelihood of substantial prejudice"). Judge Morton's failure to make specific findings, a criticism available only as a matter of hindsight after *Press-Enterprise II*, cannot under the circumstances form the basis for a declaratory judgment against him for violation of a constitutional right. We note that Judge Morton's view of the first amendment right of access to pre-trial criminal proceedings was closer to the test adopted by the Supreme Court in *Press-Enterprise II* than that of the California Supreme Court and much closer than the view of the dissenter in *Herald*.

In any event the action is moot and should have been dismissed by the district court for that reason. The transcript of the hearing became available to Batavia News within a month after the action was commenced. The district court rejected the mootness defense on the ground that the dispute between the parties was capable of repetition but would evade review unless addressed in this case. It determined that "[t]he fact that the plaintiff operates a newspaper creates a reasonable expectation that it may in the future be again subject to such an order [of closure]." The district court erred in its application of the exception to the mootness doctrine.

[1,2] Once a challenged order expires and becomes moot, as did the order here, a reviewing court retains jurisdiction only when the dispute is one capable of repetition yet escapes review because "(1) the challenged action was in its duration too short to be fully litigated prior to its cessation or expiration, and (2) there was a reasonable expectation that the same complaining party would be subjected to the same action again." *Gannett Co. v. DePasquale*, 443 U.S. 368, 377, 99 S.Ct. 2898, 2904, 61 L.Ed.2d 608 (1979). The second prong of the test has not been met here,

because there is no indication whatsoever that Judge Morton will not in the future apply the specific findings requirement established by the Supreme Court in *Press-Enterprise II* and by the New York Court of Appeals in *In re The Associated Press v. Bell*, 70 N.Y.2d 32, 517 N.Y.S.2d 444, 510 N.E.2d 313 (1987), a decision by New York's highest court that also post-dated Judge Morton's conscientious and thoughtful opinion. That opinion should have been accorded the same respect by the district court as it would have been accorded by the New York Court of Appeals under similar circumstances:

We cannot conclude that the trial court would have followed the procedures which he did or that he would necessarily have reached the same conclusion had our decision . . . preceded the hearing. While we can anticipate that the implementation of the principles that we have declared will not always be easy, we have no reason to question the readiness or capacity of the Judges at nisi prius to seek to implement them appropriately with diligence, faithfulness and imagination. We conceive our jurisprudential role in this field as one of supervising and monitoring the dispositions made by our lower courts after we declare the applicable principles, rather than retrospectively appraising conduct of Trial Judges that preceded our declarations.

In re Hearst Corp. v. Clyne, 50 N.Y.2d 707, 716-17, 431 N.Y.S.2d 400, 409 N.E.2d 876 (1980).

CONCLUSION

In accordance with the foregoing, we reverse the judgment of the district court and remand for entry of judgment in favor of defendant-appellant.



THE TWILIGHT OF JUDICIAL INDEPENDENCE—*PULLIAM v. ALLEN*

Joseph R. Weisberger*

Over 375 years ago, in the fifth year of the Reign of James I, Lord Justice Coke held, in *Floyd and Barker*¹, that a judge who presided over a murder trial at the Grand Session in the County of Anglessey was immune from conspiracy charges brought against him in the Court of Star Chamber by the defendant for the judge's conduct in the original action. Lord Coke, in a sweeping declaration, held that regardless of whether a defendant be convicted or acquitted,

[Y]et the Judge, be he Judge of Assise or a justice of peace, or any other Judge, being Judge by Commission and of record and sworn to justice, cannot be charged for conspiracy, for that which he did openly in Court as Judge or justice of the peace: and the law will not admit any proof against this vehement and violent presumption of law, that a justice sworn to do justice, will do injustice.²

Lord Coke stated that judges are accountable only to God and the King, and do not answer to any suggestion in the Star Chamber; "for this would tend to the scandal and subversion of all justice."³

This ringing affirmation of judicial immunity came at a time when the notion of judicial independence was articulated for the first time even against the king himself.⁴ Although Lord Coke believed the

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1. 77 Eng. Rep. 1305 (1607).

2. *Id.* at 1306.

3. *Id.* at 1307.

4. It was during the reign of James I that the issuance of writs of prohibition by the common law courts was called into question as an interference with the King's prerogative. All of the judges of the common law courts were called before the King after a writ of prohibition had been issued against the Court of High Commission (an ecclesiastical court). Archbishop Bancroft argued to the King that judges were but delegates of the King and that the monarch might at any time withdraw a case from the courts and decide it himself. Coke, who was the Lord Chief Justice of the Court of King's Bench, took issue with this view and stated, "The King in his own person cannot adjudge any case either criminal . . . or betwixt party and party. The King cannot take any cause out of any courts and give judgment upon it himself . . . and the judges are sworn to execute justice according to the law and constitution of England." The King responded to this radical assertion by asking in effect, "Does this mean that I shall be under the law, which it is treason to affirm?" To this question Coke answered with the famous phrase, "Bracton sayeth, quod Rex non debet esse sub homine, sed sub Deo et lege." The King responded with high indignation and offered to strike Coke

judiciary did not act under the direct supervision of the crown, King James viewed such a bold assertion with disfavor.⁵ Prior to this confrontation between Coke and James I in 1610, the prevailing view espoused by the King and his most important ministers was that Judges, like other civil servants, were merely officers of the Crown.⁶

Consequently, when referring to the early common law method of review of judicial decisions as personal actions against judges,⁷ it must be remembered that at that time, judges had not yet assumed the role which is recognizable today.⁸ Indeed, even in Lord Coke's day, the judiciary had achieved a modicum of immunity and independence necessary to defeat a personal action. By the mid-Fourteenth Century, the doctrine of judicial immunity had emerged to the extent where a judge acting within his jurisdiction was not subject to personal liability for his actions.⁹ Lord Edward Coke reinforced this doctrine in the cases of *Marshalsea*¹⁰ and *Floyd and Barker*.¹¹ From that time forward, in an unbroken line of decisions, both English and American courts reaffirmed and respected the doctrine of judicial immunity until the United States Supreme Court's decision in *Pulliam v. Allen*.¹² This article will examine the earlier decisions and analyze the effect of *Pulliam v. Allen* on both the doctrines of judicial independence and judicial immunity.

I. THE EARLY AMERICAN CASES

Chief Justice Kent of the Supreme Court of New York, one of the most respected judges in the early development of the state judiciary, enunciated the doctrine of judicial immunity in the landmark case of *Yates v. Lansing*.¹³ American courts have followed this doctrine for nearly a century and three quarters. In the original case,

who then fell abjectly upon his knees. 5 W. HOLDSWORTH, A HISTORY OF ENGLISH LAW 429-31 (2d ed. 1937).

5. See C. BOWEN, THE LION AND THE THRONE 378-79 (1957) (discussing friction between Lord Coke and King James).

6. 5 W. HOLDSWORTH, *supra* note 4, at 428.

7. 2 F. POLLOCK & F. MAITLAND, THE HISTORY OF ENGLISH LAW 668 (2d ed. 1899).

8. It should be noted that it was not until the Act of Settlement 12 and 13 William III (1701) that judges were given tenure independent of the King during good behavior. In fact, Coke was dismissed by James I from the Office of Chief Justice of the Court of King's Bench on November 14, 1616. 5 W. HOLDSWORTH, *supra* note 4, at 440.

9. The doctrine seems to have been established at least during the reign of Edward III (1326-1377). 6 W. HOLDSWORTH, *supra* note 4, at 235.

10. 77 Eng. Rep. 1027 (1610).

11. 77 Eng. Rep. 1305 (1607).

12. 104 S. Ct. 1970 (1984).

13. 5 Johns. 282 (N.Y. Sup. Ct. 1810), *aff'd*, 9 Johns. 395 (N.Y. 1811).